

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM08
Commissioner Sharon M. Anderson
Temporary Judge Catherine Evans

Date: 05/20/2026

Court Room Rules and Notices

#	Case Name	Tentative
1	Zor – Trust; 30-2025-01523808	MOTION FOR ORDERS Petitioner Jill Zor’s Motion for Orders: (1) Suspending Trustee Kimberly Zor Shaw; (2) Appointing a Temporary Professional Fiduciary Trustee; (3) Compelling Surrender of Trust Property; and (4) the Related Relief (ROA 12) is GRANTED as set forth below. This proceeding arises out of the Stanley Joseph Zor and Elaine J. Zor Living Trust dated March 18, 1999 (Trust) by Stanley and Elaine. (Because many of the persons referred to in this order share a surname, the court refers to them by their first names. No disrespect is intended.) According to the terms of the trust instrument, upon the death of either trustor, the trust estate was to be divided into two shares within six months of the death. Share A would consist of the separate property of the surviving trustor in the trust estate and the interest of the surviving trustor in the community property in the trust estate and was to be paid or distributed or held in further trust according to the wishes of the surviving trustor. Share B, which became irrevocable upon the death of either trustor, would consist of the separate property of the deceased trustor in the trust estate and the interest of the deceased trustor in the community property in trust estate. The net income of Share B was to be paid to or for the benefit of the surviving trustor. A small portion of the principal could also be paid to the surviving trustor under certain terms set forth in the trust instrument. Upon the death of the surviving trustor, the entire trust estate was to be distributed to Stanley and Elaine’s three children, Gregory Carl Zor, Brian Stanley Zor, and Kimberly Zor Shaw, in equal shares. Gregory, Brian, and Kimberly were named as joint successors co-trustees. At the time of his creation, the trust estate included seven community properties and one separate property belonging to Elaine.

Elaine passed away on May 10, 2020.

The trust instrument was amended on February 4, 2021 following Elaine's death. The amendment specifically recognized the irrevocable nature of Share B and made amendments only as to Share A. The amendment removed Brian as a beneficiary and as a successor trustee.

There was a second amendment on May 4, 2022 following the untimely death of Gregory. Like the first amendment, the second amendment specifically recognized the irrevocable nature of Share B and made changes only to Share A, specifically a directed that the entire trust estate of Share A be distributed to Kimberly or her survivors following the death of the surviving trustor. Kimberly was named as successor trustee to act jointly as co-trustee with a private professional fiduciary co-trustee, agreeable to both her and to Stanley's attorney. The amendment specified that neither co-trustee had power to act independently. Stanley passed away on December 17, 2023. (

According to the allegations of the petition, the trust estate was not divided into the required shares following Elaine's death and remains undivided to date. In addition, the petition alleges following Stanley's death, Kimberly acted as sole trustee and acted in excess of her authority in several ways. For example, she resided in one of the trust properties for a significant period of time rent-free and rented another one of the trust properties to her son at below market rates. She also allegedly failed to identify or select a qualified person/entity to serve as co-trustee but has independently listed certain of the Trust properties for sale and is working towards listing other properties.

On October 14, 2025, petitioner Jill Zor—Gregory's surviving child—filed a petition seeking to remove Kimberly as trustee and appoint an interim successor trustee. (ROA 2) the petition also requested a surcharge, an order requiring a trust accounting, and alleged breach of fiduciary duty. Kimberly has not yet filed objections.

By the motion before the court this day, Jill seeks an order suspending Kimberly and appointing Thomas Trevor Murphy as interim trustee. Kimberly opposes the motion on the ground that the relief sought by the motion is duplicative of that sought by the petition. Kimberly asserts she is preparing a petition requesting approval of the sale of certain trust estate properties. However, no petition has yet been filed. Kimberly also asserts Jill lacks standing because she is not a beneficiary of Share A. Kimberly does not address, in any respect, Jill standing as a beneficiary of

		Share B. The opposition does not cite any statutory or case authority. Pursuant to Probate Code section 17206, "[t]he court in its discretion may make any orders and take any other action necessary or proper to dispose of the matters presented by the petition, including appointment of a temporary trustee to administer the trust in whole or in part." Under that authority, the court GRANTS Jill's motion and makes the following orders, effective immediately: 1. Any and all authority of Kimberly Zor Shaw to act as Trustee of the Stanley Joseph Zor and Elaine J. Zor Living Trust, as amended (the Trust) is suspended. 2. Thomas Trevor Murphy is appointed Interim Trustee of the Trust. 3. Kimberly Zor Shaw is ordered to turn over to Murphy any and all property of the Trust, including all assets as well as books, records, documents, and any information necessary to access and marshal Trust property/assets. 4. Murphy may not spend Trust assets to pay his own trustee fees or attorney fees without prior court approval. Neither may he sell, encumber, or otherwise transfer title to any Trust real property without prior court approval. As Mr. Murphy is not named as a trustee in the Trust instrument, a bond is required. The parties should be prepared to address a date and briefing schedule for a bond review hearing. The court notes that this ruling should not be taken in any way as a finding applicable to the pending petition or to the issue of who should be appointed as permanent successor trustee if Kimberly Zor Shaw is permanently removed as trustee. Petitioner is directed to give notice.
2	Aguirre – Trust; 30-2025-01486818	MOTIONS TO COMPEL Petitioner Steven M. Aguirre's Motion to Compel Responses and/or Further Responses to Requests for Admission (Set One) on Braidee Foote (ROA 195) is DENIED as moot regarding the request for responses and further responses. The court reserves its ruling on the request for sanctions as set forth below.

		Petitioner Steven M. Aguirre’s Motion to Compel Responses and/or Further Responses to Requests for Production (Set One) on Braidee Foote (ROA 203) is DENIED as moot regarding the request for responses and further responses. The court reserves its ruling on the request for sanctions as set forth below. Petitioner Steven M. Aguirre’s Motion to Compel Responses and/or Further Responses to Special Interrogatories (Set One) on Braidee Foote (ROA 195) is DENIED as moot regarding the request for responses and further responses. The court reserves its ruling on the request for sanctions as set forth below. The three motions to compel were filed on March 6, 2026 after 7:00 pm—one day after further supplemental responses were served to each of the subject sets of discovery. Accordingly, the motions were moot from the time of filing as to any request for an order compelling further responses. However, the request for sanctions remains an open issue. The parties should be prepared to address the issue of sanctions at oral argument.
3	Connolly – Probate; 30-2026-01538097	MOTION TO STRIKE
4	Street – Trust; 30-2024-01378180	MOTION TO ENFORCE Richard James Vanderpool’s Motion to Enforce April 22, 2016 Settlement Agreement (ROA 145) is DENIED. Pursuant to Code of Civil Procedures section 664.6 (§664.6), James moves to enforce a settlement agreement entered between himself and Petitioners Chelsea Vanderpool and Courtney Vanderpool on April 22, 2016 (the Settlement). (Because the parties share a surname, the court refers to them by their first names. No disrespect is intended.) The Settlement, which resolved prior litigation between the parties, reads in full: “Respondent shall create an irrevocable trust of which Petitioners shall be the sole beneficiaries. He shall transfer the Lemon Street apartment houses to that trust. Net income of the trust shall be paid to the beneficiaries in equal shares not less frequently than quarterly. The principal shall be distributed to the

	beneficiaries thereof or one survivor of them upon her attainment of the age of 35 years by the youngest surviving beneficiary. In the event that Respondent dies prior to distribution the beneficiaries may designate a professional fiduciary as successor Trustee. [¶] The court retains jurisdiction to enforce the settlement under §664.6, C.C.P.” (Motion, Exhibit A.) Almost eight years after the parties entered into the Settlement, Chelsea and Courtney (Petitioners) initiated this proceeding seeking an order compelling Richard to file an accounting regarding the trust (the Trust) that had been created pursuant to the Settlement. (ROA 2.) On May 6, 2025, Petitioner’s filed two new petitions. The first alleged breach of fiduciary duty against Richard in connection with the Trust. (ROA 56.) The second sought to terminate the Trust based, in part on Richard’s resignation as trustee, which Petitioner’s assert eliminates the reason for the Trust. (ROA 57.) On May 29, 2025, petitioners filed a First Amended Petition (FAP), which alleges breach of fiduciary duty and seeks to modify the terms of the Trust. (ROA 62.) Richard’s motion asks the court to enter judgment enforcing the terms of the Settlement pursuant to §664.6. He argues Petitioners breached the Settlement by filing the petition seeking to terminate the Trust. He argues that under the terms of the Settlement, the Trust was to be irrevocable and the petition to terminate the Trust breaches that provision. Section 664.6 reads, in pertinent part: “If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” The purpose of § 664.6 is “to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit.” (<i>Weddington Productions, Inc. v. Flick</i> (1998) 60 Cal. App. 4th 793, 809.) “The power of the trial court under [§ 664.6], however, is extremely limited. ‘Although a judge hearing a section 664.6 motion may receive evidence, determine disputed facts, and enter the terms of a settlement agreement as a judgment [citations], nothing in section 664.6 authorizes a judge to <i>create</i> the material terms of the settlement, as opposed to deciding what terms <i>the parties themselves</i> have previously agreed upon.’” (<i>Hernandez v. Board of Education</i> (2004) 126 Cal.App.4th 1161, 1176.) Nothing in the Settlement prohibits Petitioner’s from filing a petition with this court, asking the court to terminate the
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		Trust. Because the filing of the petition did not breach any of the terms of the Settlement, there is nothing for this court to enforce. The motion is DENIED. Petitioners are directed to give notice.
5	Jaffe – Probate; 30-2022-01239652	MOTION TO BE RELIEVED AS COUNSEL Law Offices of Sandra B. DeMeo’s motion (ROA 108) to be relieved as counsel for Matilde Jaffe is GRANTED. The court will sign the Proposed Order. Moving counsel is ORDERED to give notice to all other parties to this action and file proof of service of the court’s order as entered. Withdrawal will be effective upon filing of proof of service of the order.
6	Rayhan – Probate; 30-2024-01401950	MOTION FOR PROTECTIVE ORDER
7	Stovall – Trust; 30-2024-01419135	MOTION TO DISMISS <i>Notice of Withdrawal filed 05/15/2026.</i>
8	Rivera - Probate; 30-2022-01246627	MOTION TO BE RELIEVED AS COUNSEL Danielian, LeCroy & Kolanjian’s motion to be relieved as counsel for Ren Chelsea Lopez (ROA 83) is GRANTED. The court will sign the Proposed Order. Moving counsel is ORDERED to give notice to all parties to this action and file proof of service of the court’s order as entered. Withdrawal will be effective upon filing of proof of service of the order.